

		Plaintiff request to reconsider the order deeming matters admitted is GRANTED. Where a motion to deem responses admitted is pending, the court "shall" grant the motion "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response ... in substantial compliance with Section 2033.220." [CCP § 2033.280(c); <i>St. Mary v. Sup.Ct. (Schellenberg)</i> (2014) 223 Cal.App.4th 762, 778 (citing Weil & Brown, <i>Cal Prac. Guide: Civ. Pro Before Trial</i> (The Rutter Group))] Attached to Plaintiff's opposition to the motion to deem matters admitted (ROA 273) are verified responses without objections. Plaintiff responds to each request with "Deny." These are code compliant responses. As a result, having considered the motion again, the Court now finds that the opposition was timely filed and DENIES the motion to find the requests for admission to be deemed admitted. However, the sanction award remains the same. <i>Stor-It Defendants to give notice.</i>
107	Shee vs. Han, 24-01402403	<u>DEMURRER</u> Defendant Lisa Han ("Han") demurs to Plaintiff's first, second and fourth causes of action in the Second Amended Complaint. The SAC alleges that Plaintiff and Han purchased property together in May 2013, had a falling out in December 2013, and that Han shortly thereafter misled Plaintiff into signing away her ownership interest in the property by executing a grant deed. (SAC ¶¶ 11-14.) Plaintiff alleges that in October 2020, Han put the property up for sale and requested that Plaintiff sign an affidavit of insured deed, as she was still on the mortgage. (SAC ¶ 17.) Plaintiff refused. (SAC ¶ 17.) Plaintiff alleges she learned on September 15, 2022 that escrow had closed anyway. (SAC ¶ 17.) Han refused to pay any of the funds from the sale to Plaintiff. (SAC ¶ 18.) Han contends that all three causes of action pled against her in the SAC are barred by the applicable statutes of limitations, and that Plaintiff has not sufficiently alleged facts to support the application of the discovery rule. The relevant causes of action are (1) the first cause of action for constructive trust; (2) the second cause of action for money had and receive; and (3) the fourth cause of action for fraud – concealment.

Plaintiff does not dispute Han's contention that the applicable statutes of limitations for these causes of action are, at the most, three years for money had and received where based on fraud (or, otherwise, two years); three years for fraud; and that constructive trust, which is a remedy, is subject to the limitation period of the underlying substantive right (in this case, no more than three years).

As Han points out, Plaintiff concedes she received actual notice of the open escrow (and pending sale) in October 2020. Plaintiff does not provide any explanation for why she failed to investigate the sale at the time, or why she was unable to discover the completed sale (or the October 14, 2020 recorded grant deed) until September 2022 despite reasonable diligence.

Plaintiff contends that the initiation of this action on May 24, 2024 was timely because, as alleged in the SAC, "she first discovered on or about September 15, 2022 that Escrow had closed anyway and sale monies had been disbursed for an approximate purchase price of \$880,000, netting a total profit of approximately \$515,000." (SAC ¶ 17.) In other words, Plaintiff contends that she initiated this action less than two years after she discovered the wrongdoing.

"Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that [their] injury was caused by wrongdoing, that someone has done something wrong to [them]." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) To benefit from the discovery rule, a plaintiff "must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.)

Here, Plaintiff has not pleaded sufficient facts to invoke the discovery rule. She has not pleaded any facts to show the manner of discovery or the inability to have made earlier discovery despite reasonable diligence.

Accordingly, Han's demurrer is SUSTAINED. Because this is Han's first challenge to Plaintiff's pleading, the Court grants 20 days leave to amend.

Defendant Han to give notice.

DEMURRER AND MOTION TO STRIKE

Defendants Escrow Options Group ("EOG") and Shastin Angel ("Angel") (together, "Defendants") demur to

	Plaintiff's third cause of action for breach of fiduciary in the Second Amended Complaint. They also seek an order striking Plaintiff's prayer for punitive damages and for attorney's fees in connection with the third cause of action. This Court previously sustained Defendants' demurrer to Plaintiff's breach of fiduciary duty cause of action as pled in the initial Complaint, with leave to amend. In California, "[t]he elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach." (<i>O'Neal v. Stanislaus County Employees' Retirement Assn.</i> (2017) 8 Cal.App.5th 1184, 1215.) "A fiduciary relationship is any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party." (<i>Wolf v. Superior Court</i> (2003) 107 Cal.App.4th 25, 29, as modified on denial of reh'g (Mar. 20, 2003) [citations omitted].) "Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter's knowledge or consent." (<i>Ibid.</i>) "Traditional examples of fiduciary relationships in the commercial context include trustee/beneficiary, directors and majority shareholders of a corporation, business partners, joint adventurers, and agent/principal." (<i>Id.</i> at 30.) As she did in her initial Complaint, Plaintiff again alleges that she purchased real property with defendant Lisa Han. (SAC ¶11.) Plaintiff and Han subsequently had a falling out. (SAC ¶13.) After the falling out, Han allegedly pressured Plaintiff into signing a grant deed transferring Plaintiff's interest in the property into Han's name alone. (SAC ¶13.) However, according to Plaintiff, Han disguised the true nature of the grant deed and Plaintiff was unaware that Han intended to keep the property for herself. (SAC ¶14.) Han allegedly agreed to pay Plaintiff the amount that Plaintiff had paid toward the down payment on the property, but never did so. (SAC ¶16, 18.) Plaintiff alleges that in October of 2020, she was contacted by EOG with a request that Plaintiff sign an
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	"affidavit of insured deed." (SAC ¶ 17.) This was how Plaintiff first learned that Han had put the property up for sale. (SAC ¶ 17.) Han needed Plaintiff's signature because Plaintiff was still on the mortgage to the property. (SAC ¶ 17.) Plaintiff reused to sign the affidavit; however, escrow closed anyway and sale monies were disbursed. (SAC ¶ 17.) Plaintiff alleges that EOG and escrow agent Angel were aware of Plaintiff's refusal to sign the affidavit and had been contacted by Plaintiff's father regarding issues with title to the property, yet still facilitated the close of escrow. (SAC ¶ 19.) Plaintiff has still failed to allege a fiduciary relationship. Plaintiff was not a party to the escrow. As this Court stated in sustaining Defendants' previous demurrer, in <i>Summit Financial Holdings, Ltd. v. Continental Lawyers Title Co.</i> (2002) 27 Cal.4th 705, 711, the Supreme Court explained an escrow holder is an agent and fiduciary of the parties to the escrow. "The agency created by the escrow is limited—limited to the obligation of the escrow holder to carry out the instructions of each of the parties to the escrow." (<i>Ibid.</i>) An escrow holder "has no general duty to police the affairs of its depositors." (<i>Ibid.</i>) Further, the court in <i>Lee v. Title Ins. & Trust Co.</i> (1968) 264 Cal.App.2d 160, 162–163, held an escrow holder has no general duty to go beyond the escrow instructions and to disclose suspicious facts or circumstances. Plaintiff cites to <i>Diaz v. United California Bank</i> (1977) 71 Cal.App.3d 161 and <i>Virtanen v. O'Connell</i> (2006) 140 Cal.App.4th 688 as supporting the proposition that an escrow holder can owe fiduciary duties to a third party that is not a party to the escrow transaction. <i>Diaz</i> is inapposite because it involved whether the escrow holder breached a duty to one of the parties to the escrow transaction when it ignored a conflicting instruction given by that party. (<i>See Diaz v. United California Bank</i> (1977) 71 Cal.App.3d 161.) Here, the SAC alleges that Plaintiff and her father (neither of whom is alleged to have been a party to the escrow) attempted to notify Defendants that there was a conflict implicating the escrow. <i>Virtanen</i> is similarly inapposite, as it also involved an escrow holder's duties when presented with conflicting instructions from the parties to the escrow. (<i>See Virtanen v. O'Connell</i> (2006) 140 Cal.App.4th 688.) Accordingly, because Plaintiff has not pled a fiduciary relationship between herself (a nonparty to the escrow)
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		and the moving Defendants, the demurrer is SUSTAINED. Although this is Plaintiff's third attempt to plead this cause of action, the Court will grant one final opportunity for Plaintiff to amend her pleading. Plaintiff shall 20 days leave to amend. In light of the Court's ruling on the demurrer, the Motion to Strike is MOOT. The Case Management Conference is continued to October 1, 2026 at 1:30 p.m. Finally, the Court notes that Plaintiff has filed an ex parte to advance the hearing on her motion for leave to file a third amended complaint. In light of the rulings above, the Court deems the ex parte and the motion scheduled for 10/15/2026 MOOT and the Court vacates the 10/15/2026 hearing date. <i>Moving parties to give notice.</i>
108	Norton vs. Sprouts Farmers Market, Inc., 22-01282213	Defendant, SF MARKETS, LLC dba Sprouts Farmers Market will and hereby does move the Court for Summary Judgment in its favor and against Plaintiff CHERIE NORTON. Alternatively, Defendant moves for Summary Adjudication of the following issues: ISSUE NO. 1: Plaintiff's negligence and premises liability causes of action fail because Defendant did not have actual notice of the alleged dangerous condition prior to Plaintiff's alleged incident. ISSUE NO. 2: Plaintiff's negligence and premises liability causes of action fail because Defendant did not have constructive notice of the alleged dangerous condition, as the undisputed evidence establishes that the area was inspected approximately 16–17 minutes before the alleged incident, and the condition developed thereafter. Initially, as to the alternative request for summary adjudication, Defendant seeks adjudication as to issues of actual and constructive notice. However, this request is not proper under CCP §437c(f)(1). ["A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." CCP §437c(f)(1).] As such, the